

Jurisdiction: Texas (State & Fed.)

Question

1. I want to argue that it is a ministerial duty of a court to issue orders requiring parties to comply with relevant state and federal laws - like the fair housing act and texas fair housing act.

The issuance of court orders requiring parties to comply with relevant state and federal laws, such as the Fair Housing Act and the Texas Fair Housing Act, can be considered a ministerial duty under certain circumstances. Courts have the authority to enforce compliance with legal obligations, particularly when such compliance is mandated by statutes or regulations.

Ministerial Duty of Courts to Enforce Compliance with Laws

A ministerial duty is one that is clearly defined and requires no exercise of discretion or judgment. Courts have been recognized to possess the authority to issue orders compelling compliance with legal obligations, especially when those obligations are explicitly mandated by law. For example, in [PermiaCare v. L.R.H.](#), the court acknowledged that a ministerial duty exists when officials are required to perform specific acts mandated by law without discretion. The court held that a continuing violation of such a duty could warrant prospective injunctive relief ([PermiaCare v. L.R.H.](#), 600 S.W.3d 431 (2020)) [1].

Similarly, under the [Federal Rules of Civil Procedure Rule 37](#) provides courts with the authority to issue orders compelling compliance with discovery obligations. Specifically, Rule 37(a) allows a party to move for an order compelling disclosure or discovery when another party fails to comply with discovery requirements. If a party fails to obey such an order, the court may issue further just orders, including treating the failure as contempt of court ([Federal Rules of Civil Procedure Rule 37](#)) [2]. This demonstrates the court's role in enforcing compliance with legal obligations, which can be considered ministerial when the law clearly mandates such compliance.

Enforcement of Fair Housing Laws

The Fair Housing Act ([42 U.S.C.A. § 3601](#) et seq.) establishes the policy of the United States to provide for fair housing within constitutional limitations ([42 U.S.C.A. § 3601](#)) [3]. Section 3608 of the Act places affirmative duties on the Secretary of Housing and Urban Development (HUD) and other executive agencies to administer housing programs in a manner that affirmatively furthers fair housing purposes ([42 U.S.C.A. § 3608](#)) [4]. Courts have recognized that failure to comply with these statutory duties constitutes a discriminatory housing practice. For instance, in [Young v. Pierce](#), the court held that HUD's failure to perform its legal duties under § 3608(d)(5) of the Fair Housing Act amounted to a discriminatory housing practice ([Young v. Pierce](#), 544 F.Supp. 1010 (1982)) [5]. The court further emphasized that private parties could act as "private attorneys general" to ensure federal agencies comply with their statutory obligations ([Young v. Pierce](#), 544 F.Supp. 1010 (1982)) [5].

The Texas Fair Housing Act, codified in Chapter 301 of the Texas Property Code, mirrors the federal Fair Housing Act and prohibits discrimination in housing. Regulations under the Texas Administrative Code also require development owners to remain in compliance with state and federal fair housing laws, including the Texas Fair Housing Act and the federal Fair Housing Act ([10 TAC § 11.101](#)) [6]. This

regulatory framework underscores the importance of compliance with fair housing laws and provides a basis for courts to issue orders enforcing such compliance.

Judicial Enforcement of Housing Standards and Regulations

Courts have also intervened to enforce compliance with housing standards and regulations. In [Gutierrez v. Wade Pennington & Sons, LLC](#), the court noted that housing providers are required to comply with both state and federal health and safety standards, including those promulgated by the Texas Department of Housing and Community Affairs (TDHCA) and the U.S. Department of Labor's Employment and Training Administration (ETA) standards ([Gutierrez v. Wade Pennington & Sons, LLC, 566 F.Supp.3d 739 \(2021\)](#)) [7]. This case illustrates the judiciary's role in ensuring adherence to housing laws and regulations, which may involve issuing orders to compel compliance.

Additionally, in [Walker v. U.S. Dept. of Housing and Urban Development](#), the court appointed a special master to monitor compliance with a consent decree addressing racial discrimination in public housing. The appointment was deemed appropriate due to repeated violations of the decree by the Dallas Housing Authority, which failed to implement various housing-related obligations ([Walker v. U.S. Dept. of Housing and Urban Development, 734 F.Supp. 1231 \(1989\)](#)) [8]. This case highlights the court's authority to enforce compliance with housing laws and agreements through judicial orders.

Limitations on Ministerial Duties

While courts have the authority to enforce compliance with legal obligations, it is important to distinguish between ministerial and discretionary acts. In [Hawthorne v. La-Man Constructors, Inc.](#), the court addressed the issue of whether an order compelled the performance of a discretionary, non-ministerial act. The court emphasized that a ministerial duty must be clearly defined and not involve discretion or judgment ([Hawthorne v. La-Man Constructors, Inc., 672 S.W.2d 255 \(1984\)](#)) [9]. This distinction is critical in determining whether a court's action can be classified as ministerial.

In conclusion, courts have the authority to issue orders requiring parties to comply with state and federal laws, including the Fair Housing Act and the Texas Fair Housing Act, when such compliance is mandated by law. This authority is consistent with the concept of a ministerial duty, which involves the enforcement of clearly defined legal obligations without the exercise of discretion. However, the specific circumstances of each case must be carefully analyzed to determine whether the court's action constitutes a ministerial duty or involves discretionary judgment.

Commentary about this question

APPENDIX 7A. Sample Consent Decrees

Housing Discrimination Practice Manual • 4 Housing Discrim. Pr. Man. Appendix 7A

This legal material outlines comprehensive consent decrees and conciliation agreements involving fair housing compliance under both federal law (the Fair Housing Act, Title VIII) and Texas state law, including administration of Texas hurricane recovery funds. It details obligations imposed on state agencies and private defendants to ensure nondiscriminatory housing practices, affirmatively further fair housing, comply with accessibility standards, and provide transparency and enforcement mechanisms such as injunctive relief and sanctions. The agreements establish procedural and substantive requirements including employee training, public notices, and remedies for breach, applicable to entities operating within Texas and under federal jurisdiction. The material includes provisions confirming that enforcement actions may be brought in Texas state and federal courts, reinforcing compliance as a mandatory duty.

This reflects an authoritative framework whereby courts and agencies are empowered and, by implication, obligated to issue orders ensuring adherence to relevant state and federal fair housing laws within Texas jurisdiction.

COURTS

HDR Current Developments • 50 No. CD-9 HDR Current Developments NL 6

This analysis addresses judicial authority regarding compliance with federal and state housing laws, specifically highlighting a Texas federal district court's refusal to assume federal question jurisdiction when the plaintiff's claims rested solely on Texas Fair Housing Act and Texas constitutional provisions, without requiring interpretation of federal law. It discusses the limits of federal jurisdiction over state housing claims and the related standards for federal question jurisdiction under 28 U.S.C. § 1331. The analysis further clarifies that courts lack federal jurisdiction over non-federal causes of action unless resolution of a federal question is necessary. The document also references judicial discretion in issuing injunctive relief and declaratory judgments under Texas law and federal statutes related to fair housing. Thus, it provides context for the ministerial duties of courts concerning enforcement and compliance with housing laws in Texas under federal and state jurisdictional frameworks.

APPENDIX 4C. Sample Complaints

Housing Discrimination Practice Manual • 2 Housing Discrim. Pr. Man. Appendix 4C

This legal text discusses the enforcement of federal and state fair housing laws, particularly the Fair Housing Act (FHA) and its affirmative furthering fair housing (AFFH) provisions. It highlights the obligations of jurisdictions receiving federal housing funds, including Texas entities, to comply with nondiscrimination and fair housing mandates. The text elaborates on the responsibilities of the U.S. Department of Housing and Urban Development (HUD) to enforce compliance through certifications and monitoring, demonstrating that HUD possesses both authority and duty to ensure jurisdictions fulfill AFFH obligations. The document details instances where local governments have failed to meet these requirements and HUD's role in sanctioning noncompliance. It underscores the procedural mechanisms by which courts and federal agencies intervene to enforce adherence to fair housing statutes, articulating the legal framework imposing ministerial duties on courts and agencies to issue orders compelling compliance with housing laws at both state and federal levels, including within Texas jurisdiction.

The above response is AI-generated and may contain errors. It should be verified for accuracy.

Cases, statutes, and regulations

1. **PermiaCare v. L.R.H.**

Court of Appeals of Texas, El Paso. • January 31, 2020 • 600 S.W.3d 431 • 2020 WL 502486

"...2. L.R.H. Alleges an Ongoing Violation of Ministerial Duty. L.R.H. alleges that the Officials violated this ministerial duty, as she was assigned--and continues to be assigned--various case managers, who are supervised by other caseworkers, but not by an LPHA as required by the TAC. Further, unlike her other ultra vires claims, there is nothing in L.R.H.'s pleadings to indicate that the Officials have rectified this situation. Accordingly, we conclude that L.R.H. has properly pled that the Officials are engaging in a continuing violation of their ministerial

duty to ensure that the caseworkers assigned to L.R.H. are properly supervised, thereby making it possible for a court to grant prospective injunctive relief...."

2. Rule 37. Failure to Make Disclosures or to Cooperate in Discovery; Sanctions

FRCP Rule 37

"...(a) Motion for an Order Compelling Disclosure or Discovery. (1) In General. On notice to other parties and all affected persons, a party may move for an order compelling disclosure or discovery. The motion must include a certification that the movant has in good faith conferred or attempted to confer with the person or party failing to make disclosure or discovery in an effort to obtain it without court action. (2) Appropriate Court. A motion for an order to a party must be made in the court where the action is pending. A motion for an order to a nonparty must be made in the court where the discovery is or will be taken. (3) Specific Motions. (A) To Compel Disclosure. If a party fails to make a disclosure required by Rule 26(a), any other party may move to compel disclosure and for appropriate sanctions. (B) To Compel a Discovery..."

"...(B) For Not Producing a Person for Examination. If a party fails to comply with an order under Rule 35(a) requiring it to produce another person for examination, the court may issue any of the orders listed in Rule 37(b) (2)(A)(i)-(vi), unless the disobedient party shows that it cannot produce the other person...."

3. § 3601. Declaration of policy

42 USCA § 3601

"...It is the policy of the United States to provide, within constitutional limitations, for fair housing throughout the United States...."

4. § 3608. Administration

42 USCA § 3608

"...(a) Authority and responsibility The authority and responsibility for administering this Act shall be in the Secretary of Housing and Urban Development. (b) Assistant Secretary The Department of Housing and Urban Development shall be provided an additional Assistant Secretary. (c) Delegation of authority; appointment of administrative law judges; location of conciliation meetings; administrative review The Secretary may delegate any of his functions, duties, and powers to employees of the Department of Housing and Urban Development or to boards of such employees, including functions, duties, and powers with respect to investigating, conciliating, hearing, determining, ordering, certifying, reporting, or otherwise acting as to any work, business, or matter under this subchapter. The person to whom such delegations are made with respect to hearing functions, duties, and powers shall be appointed and shall serve in the Department of Housing and Urban Development in compliance with sections 3105, 3344, 5372, and 7521 of Title..."

"...The Secretary of Housing and Urban Development shall-- (3) cooperate with and render technical assistance to Federal, State, local, and other public or private agencies, organizations, and institutions which are formulating or carrying on programs to prevent or eliminate discriminatory housing practices;..."

5. **Young v. Pierce**

United States District Court, E. D. Texas, Paris Division. • July 01, 1982 • 544 F.Supp. 1010 • 1982 WL 1079902

"...B. Title VIII of the Civil Rights Act of 1968. Viewed another way, the failure of HUD to perform its legal duties mandated by s 3608(d)(5) constitutes a discriminatory housing practice, in itself. Title VIII is founded on the irrefutable premise that the prevailing structure of the housing market in this country bears the stamp of a long history of discrimination in all forms of social life. Present housing allocation is distorted, both by the after-effects of legally sanctioned racial discrimination, and by the enduring prevalence of discrimination, despite a "complete arsenal of federal authority" aimed at eradicating it. *Jones v. Alfred H. Mayer Co.*, 392 U.S. 409, 417, 88 S.Ct. 2186, 2191, 20 L.Ed.2d 1189 (1968). The Supreme Court has acknowledged the "enormity of the task of assuring fair housing," *Trafficante, supra*, 409 U.S. at 211, 93 S.Ct. at 367. In view of the scope of the mission, the "main generating force must be private suits in which ... the complainants act not only on their own behalf but also 'as private attorneys general in vindicating a policy that Congress considered to be of highest priority.' " *Id.* The Attorney General is charged with enforcing the law against all persons, including federal agencies. *United States v. Nixon, supra*. Similarly, the concept of private attorneys general vindicating Congressional policy logically extends to suits brought to insure that federal agencies comply with their explicit duties created by statute. For this purpose, then, a private right of action exists against HUD for violation of its affirmative duties under s 3608(d)(5)...."

"...3. Section 8 Housing. Thus, HUD is bound by its own regulations to implement the objectives of Title VI and Title VIII, as well as the general constitutional principle of equal protection of the laws. In this action, plaintiffs charge HUD has wholly abrogated these affirmative duties in East Texas. The action is brought as a class action, on behalf of black residents of East Texas eligible for federally assisted housing and denied the benefits of such housing, in part because of the inaction of HUD...."

6. **§ 11.101. Site and Development Requirements and Restrictions**

10 TX ADC § 11.101

"...(C) The Development Owner is and will remain in compliance with state and federal laws, including but not limited to, fair housing laws, including Chapter 301, Property Code, Title VIII of the Civil Rights Act of 1968 (42 U.S.C. SS3601 et seq.), the Fair Housing Amendments Act of 1988 (42 U.S.C. SS3601 et seq.); the Civil Rights Act of 1964 (42 U.S.C. SS2000a et seq.); the Americans with Disabilities Act of 1990 (42 U.S.C. SS12101 et seq.); the Rehabilitation Act of 1973 (29 U.S.C. SS701 et seq.); Fair Housing Accessibility; the Texas Fair Housing Act; and that the Development is designed consistent with the Fair Housing Act Design Manual produced by HUD, and the Texas Accessibility Standards. (S2306.257; S2306.6705(7))..."

"...(iii) No mitigation was provided, or in staff's determination the mitigation was considered unsatisfactory and the Applicant has requested a waiver of the presence of Neighborhood Risk Factors on the basis that the Development is necessary to enable the state, a participating jurisdiction, or an entitlement community to comply

with its obligation to affirmatively further fair housing, a HUD approved Conciliation Agreement, or a final and non-appealable court order and such documentation is submitted with the disclosure...."

7. Gutierrez v. Wade Pennington & Sons, LLC

United States District Court, S.D. Texas, Corpus Christi Division. • September 28, 2021 • 566 F.Supp.3d 739 • 2021 WL 8055767

"...F. Segura failed to obtain a federal and state inspection of the housing and failed to post a certificate of occupancy at the housing site. 30. In Texas, housing must be inspected and licensed by the Texas Department of Housing and Community Affairs (TDHCA) prior to occupancy. The TDHCA has promulgated state standards for farmworker housing which it has the authority to enforce. These standards apply in addition to the federal standards imposed by the AWPAA and other federal statutes and regulations. Under federal law, housing constructed before April 1, 1980, must comply with the USDOL Employment and Training Administration (ETA) standards. The property at which the Plaintiffs were housed was constructed before 1980, so the ETA standards apply...."

"...G. Segura failed to provide housing that complied with state and federal health and safety regulations. 33. In addition to securing an inspection and a certificate of occupancy, it is also incumbent on each person, who owns or controls migrant farmworker housing per the AWPAA, to ensure that the housing complies "with substantive Federal and State safety and health standards applicable to that housing." As discussed above, the applicable state standards are the TDHCA housing standards, and the applicable federal standards are the USDOL ETA standards...."

8. Walker v. U.S. Dept. of Housing and Urban Development

United States District Court, N.D. Texas, Dallas Division. • August 04, 1989 • 734 F.Supp. 1231 • 1989 WL 165228

"...Appointment of special master to monitor compliance with consent decree arising from class action suit alleging racial discrimination in low income public housing in Dallas area was appropriate in light of repeated violation of decree by Dallas Housing Authority through failure to implement, or implement on time, tenant assignment and selection plan, tenant mobility services, 120% fair market rent exception for use of S 8 certificates and vouchers, first year goal for use of S 8 assistance in nonimpacted areas, obligation to request code enforcement for housing code violations, and deadlines set for construction and occupancy of 100 units of new low income public housing. United States Housing Act of 1937, S 2 et seq., as amended, 42 U.S.C.A. S 1437 et seq.; Fed.Rules Civ.Proc.Rule 53, 28 U.S.C.A...."

9. Hawthorne v. La-Man Constructors, Inc.

Court of Appeals of Texas, Beaumont. • March 01, 1984 • 672 S.W.2d 255 • 1984 WL 1107971

"...OPINION. In several points of error (ten through thirteen), Appellants contend that issuance of the order is useless and unavailing, commands acts impossible to perform, compels performance of a discretionary, non-ministerial act, and even that the order itself is vague in its command to "raise revenue" to satisfy the judgment...."

10. Pierce v. Winograd

United States Court of Appeals, Fifth Circuit. • April 15, 1985 • 757 F.2d 714 • 1985 WL 1294522

"...III. Section 810(c) of the Fair Housing Act, 42 U.S.C. S 3610(c), prohibits HUD from investigating a housing discrimination complaint if a local fair housing law provides substantially equivalent rights and remedies. The district court held that HUD was not prohibited from investigating the complaints filed by Janice Clay and Regina Cooper because the rights and remedies provided by Houston's Fair Housing Ordinance, Houston, Tex., Code SS 15 1/212-11 to -23 (1975), were not substantially equivalent to those provided by the Fair Housing Act, 42 U.S.C. SS 3601-3631...."

"...Local fair housing law did not provide substantial equivalent rights and remedies and, hence, Department of Housing and Urban Development was not prohibited from investigating complaint of discrimination in rental housing, where exemptions and exclusions in local ordinance were broader than those in the federal statute, in that in addition to injunctive relief and findings federal law allowed actual and punitive damages, local ordinance had a 60-day filing limit whereas federal law provided 180-day limit, local agency lacked subpoena authority and had no independent authority to secure compliance with its investigation. Civil Rights Act of 1968, S 810(c), 42 U.S.C.A. S 3610(c)...."

11. City of Austin v. Paxton

United States Court of Appeals, Fifth Circuit. • December 04, 2019 • 943 F.3d 993 • 2019 WL 6520769

"...Texas Attorney General lacked a sufficient connection, arising from compulsion or constraint, to enforcement of Texas statute for which a Texas city sought to enjoin enforcement, as would be required for Ex parte Young exception to Eleventh Amendment sovereign immunity from suit in federal court, in city's action to enjoin enforcement of Texas statute barring municipalities and counties from adopting or enforcing an ordinance or regulation prohibiting a landlord from refusing to rent to a potential tenant who would pay rent with federal housing vouchers; Attorney General's enforcement authority was odd, in that enforcement apparently would be pursued as a defense in a private suit by city against a landlord who refused to abide by city's ordinance, with Attorney General intervening in such a suit to enforce the supremacy of state law, and other cases involving municipal ordinances, in which Attorney General had intervened to enforce the supremacy of state law, lacked any overlapping facts with the case at bar and were not even remotely related to city's ordinance. U.S. Const. Amend. 11; United States Housing Act of 1937 S 8(a), 42 U.S.C.A. S 1437f(a); Tex. Loc. Gov't Code Ann. S 250.007(a); 24 C.F.R. S 982.302(a)...."

12. U.S. v. Northside Realty Associates, Inc.

United States Court of Appeals, Fifth Circuit. • March 14, 1973 • 474 F.2d 1164

"...Finally, Isakson manifested an intent not to comply with the Fair Housing Act by stating that Congress had exceeded its constitutional authority in enacting the Fair Housing Act...."

"...III. THE AMBIGUITIES OF THE DISTRICT COURT'S ORDER. "I am familiar with the Fair Housing or Civil Rights Act of 1968; and I know that the Act makes certain actions illegal, so far as Congress has authority within the limitations of the U. S. Constitution to make such actions illegal. Although I believe that my firm and I have complied with the Act, I personally believe that Congress may have exceeded its authority under the Constitution

in enacting the Act and I intend to challenge Congress' action in this litigation in hopes that this court will interpret the law and decide the case in my favor." The District Court held:..."

13. **Nash v. City of Lubbock**

Court of Appeals of Texas, Amarillo. • November 21, 1994 • 888 S.W.2d 557 • 1994 WL 652625

"...Notice of the entry of the 11 July 1986 order was given to the Nashes. They neither complied with the terms of the order, nor took an appeal from it to a court of competent jurisdiction within the ten day period allowed for an appeal by the Housing Code, and the order became final after the expiration of ten days from its date. Lubbock, Tex., Housing Code S 1203...."

14. **Young v. Pierce**

United States District Court, E.D. Texas, Paris Division. • July 31, 1985 • 628 F.Supp. 1037

"...Public Housing in East Texas. While HUD vigorously enforced the site-selection regulations governing Section 8 New Construction, it appears to have abdicated altogether its duty to enforce the Fair Housing Plan regulations which theoretically make this housing available to minorities. A review of the documents submitted by HUD indicates that HUD approved three projects which did not submit any Fair Housing Plan (Raintree Tower and Northridge Manor in Beaumont; Pine Lakes Estate in Nacogdoches). Two projects were approved which submitted Fair Housing Plan's calling for no expected occupancy by blacks. For those projects which did submit plans, there is no apparent relationship between estimated need for housing by blacks and the proposed percentage of black occupants in the Fair Housing Plan. In most cases, the proposed figure is about half of need, as reflected in the percentage of blacks in surrounding areas with incomes below the poverty level. Additionally, HUD appears to have ignored totally its responsibility to monitor the results of the Fair Housing Plans. Only half of the Section 8 New Construction projects submitted reports at all. These reports were in each instance late. The reports indicate that few projects actually fulfilled their professed goals of minority participation. HUD appears to have done nothing to review or monitor the initial occupancy process. As a result, those projects which did tardily submit their occupancy reports presented HUD with a fait accompli, generally consisting of an all-white or mostly white project...."

15. **Jamestown Partners, L.P. v. City of Fort Worth**

Court of Appeals of Texas, Fort Worth. • August 08, 2002 • 83 S.W.3d 376 • 2002 WL 1815989

"...DISCUSSION .Effect of Compliance Agreement on Chapter 54 Action. The legislature has also made it clear there is a difference between civil actions to enforce ordinances and quasi-judicial enforcement through a building standards commission. The provisions governing those two types of enforcement are located in separate and distinct subchapters of chapter 54. See Tex. Loc. Gov't Code Ann.. SS 54.012-.019 (Subchapter B) (governing civil actions to enforce health and safety ordinances); id. SS 54.031-.043 (Vernon 1999 & Supp.2002) (Subchapter C) (governing quasi-judicial enforcement by building and standards commission of health and safety ordinances). Thus, the City's Minimum Building Standards Code and chapter 54 make it clear that BSC review is not the same as a chapter 54 civil action. As a result, when the City expressly promised not to bring the properties before the BSC, it did not also promise to would refrain from a chapter 54 action...."

Additional Research on This Topic

16. Corpus Christi Housing Authority v. Lara

Court of Appeals of Texas, Corpus Christi–Edinburg. • July 17, 2008 • 267 S.W.3d 222 • 2008 WL 2764524

"...B. Notice. 24 C.F.R. S 966.4(l)(3)(v)(B) (emphasis added). The housing authority contends that Texas has only one judicial eviction procedure, and, therefore, its generic notice was sufficient. We disagree...."

17. M.D. bnf Stukenberg v. Abbot

United States District Court, S.D. Texas, Corpus Christi Division. • December 18, 2020 • 509 F.Supp.3d 683 • 2020 WL 7485018

"...3. Defendants Have Failed To Comply with Remedial Order 10. Defendants further argue that they have "exercised reasonable diligence and taken reasonable efforts in a good faith effort to comply with Remedial Order No. 10." D.E. 911 at 15-16; see also LeGrand, 43 F.3d at 170; (making good faith attempts to comply is a defense to civil contempt); Petroleos Mexicanos, 826 F.2d at 401 (same). Defendants allege that they provided a "field communication and corresponding job aid" to RCCI staff regarding investigation deadlines and extension requests in June 2019; that they "released RCCI Field Communication #014, with amended policies" regarding the timing of staffing investigations in September of 2019; that they sent weekly reports to supervisors regarding upcoming or overdue deadlines starting on September 23, 2019; and that they sent a weekly extension report to RCCI supervisors starting in March 2020 "to ensure investigators and supervisors are following DFPS policy." D.E. 911 at 15-16. "Therefore," they argue, "DFPS should not be held in contempt related to Remedial Order No. 10." Id. at 16...."

18. Rule 26. Duty to Disclose; General Provisions Governing Discovery [Rule Text & Notes of Decisions subdivisions I, II]

FRCP Rule 26

"...(3) Discovery Plan. A discovery plan must state the parties' views and proposals on: (F) any other orders that the court should issue under Rule 26(c) or under Rule 16(b) and (c)...."

19. Amendment XI. Suits Against States

USCA CONST Amend. XI

"...The Judicial power of the United States shall not be construed to extend to any suit in law or equity, commenced or prosecuted against one of the United States by Citizens of another State, or by Citizens or Subjects of any Foreign State...."

20. Young v. Pierce

United States Court of Appeals, Fifth Circuit. • July 20, 1987 • 822 F.2d 1368

"...Class action was brought charging United States Department of Housing and Urban Development and certain local housing authority with maintaining racially desegregated housing. The United States District Court for the Eastern District of Texas, at Paris, William Wayne Justice, Chief Judge, 640 F.Supp. 1476, issued interim injunction and appointed special master. HUD appealed. Following settlement of several issues, District Court's judgment was partially vacated, and, on the remaining issues, the Court of Appeals, Randall, Circuit Judge, held that: (1) lack of specificity of injunction required remand so that injunction could be modified to make more specific HUD's obligations, and (2) it was appropriate for district court to consider HUD's objections to fact that master was empowered to assume "investigatory mantle," and whether to modify special master order accordingly. Vacated and remanded..."

Administrative decisions and guidance

CH. 8 SUBPOENAS

May 01, 2025 • FLB-NLRB Ch. 8 • 2015 WL 6503840

"...National Labor Relations Board Administrative Law Judge Bench Book May 2025 CH. 8 SUBPOENAS § 8..."

"...Scope of Subpoenas § 8-310 Material Must Be "Reasonably Relevant " § 8-320 Request Must Not Be Vague or Overbroad..."

"...Inspections § 8-530 Special Masters § 8-600 Protective Orders § 8-700 Noncompliance with Subpoena § 8-710 Failure..."

"...Upon receipt of the application, the subpoena(s) must be issued; there is no discretion. See Sec. 11(1) of the..."

IN THE MATTER OF IMPLEMENTING THE INFRASTRUCTURE INVESTMENT AND JOBS ACT: PREVENTION AND ELIMINATION OF DIGITAL DISCRIMINATION

November 20, 2023 • 38 FCC Rcd. 11440 • 38 F.C.C.R. 11440

"...end of this document Federal Communications Commission (F.C.C.) Report and Order and Further Notice of Proposed Rulemaking IN THE MATTER OF..."

"...By the Commission: Chairwoman Rosenworcel and Commissioners Starks and Gomez issuing separate statements; Commissioners Carr and Simington dissenting and issuing separate statements. TABLE OF CONTENTS Heading I. INTRODUCTION AND SUMMARY..."

"...Geographic Comparability 4. Data to Analyze Differential Impact G. Other Issues H. State and Local Model Policies and Best Practices IV..."

"...to Promote Digital Equity and Inclusion V. PROCEDURAL MATTERS VI. ORDERING CLAUSES APPENDIX A — FINAL RULES APPENDIX B — FINAL REGULATORY FLEXIBILITY..."

IN THE MATTER OF IMPLEMENTING THE INFRASTRUCTURE INVESTMENT AND JOBS ACT: PREVENTION AND ELIMINATION OF DIGITAL DISCRIMINATION

December 22, 2022 • 37 FCC Rcd. 15274 • 37 F.C.C.R. 15274

"...Federal Register) By the Commission: Chairwoman Rosenworcel and Commissioner Starks issuing separate statements. TABLE OF CONTENTS Heading I. INTRODUCTION II. BACKGROUND..."

"...Promote Digital Equity and Inclusion IV. OTHER PROCEDURAL MATTERS V. ORDERING CLAUSES APPENDIX A — FINAL REGULATORY FLEXIBILITY ANALYSIS APPENDIX B — REPORT..."

"...November 15, 2021, President Biden signed the Infrastructure Act into law. Among other provisions regarding broadband infrastructure, section 60506 of that..."

"...satisfying that obligation, section 60506 requires us to consider "the issues of technical and economic feasibility presented by that objective" [FN5..."

Additional secondary sources

A CITY ZONING CODE WHICH DESIGNATES HOUSEHOLD COMPOSITION, RATHER THAN MAXIMUM OCCUPANCY, MUST COMPLY WITH THE FAIR HOUSING ACT'S PROHIBITION AGAINST DISCRIMINATION

Stetson Law Review • 25 Stetson L. Rev. 947

The United States Supreme Court held the Fair Housing Act's (Act) maximum occupancy exemption was inapplicable to a city zoning code because the code described household composition, rather than limiting the number of occupants per dwelling. *Id.* at 1783. Oxford House received a citation for violating the City of Edmonds' (City's) single family zoning. Oxford House was operating a rehabilitation home for ten to twelve recovering alcoholics and drug addicts. Oxford House relied on the Act's prohibition against discrimination of persons with handicaps. The City argued the Act did not constrain its zoning code. Oxford House counterclaimed charging that the City violated 42 U.S.C. § 3604(f)(3)(B) because it failed to make a reasonable accommodation within its single-family zone. The district court held the City's zoning code was exempt from the Act under 42 U.S.C. § 3607(b)(1). *Id.* at 1779. The Ninth Circuit reversed, holding that section 3607(b)(1)'s exemption was...

"...The United States Supreme Court held the Fair Housing Act's (Act) maximum occupancy exemption was inapplicable to a city zoning code because the code described household composition, rather than limiting the number of occupants per dwelling. *Id.* at 1783...."

"...*Id.* The United States Supreme Court granted certiorari because of the conflict in the circuit courts. *Id.* at 1780...."

"...The United States Supreme Court held the City's code was not exempt from the Act under section 3607(b)(1)...."

"...Id. at 1782. The Court remanded to the trial court to decide whether the code violated the Act's prohibition against discrimination. Id. at 1783...."

SUPREME COURT UPDATE

The Advocate (Texas) • 58 The Advoc. (Texas) 1

C1-2TABLE OF CONTENTS I. SCOPE OF THIS ARTICLE. 1 II. ADMINISTRATIVE LAW. 1 A. Driver's License Suspension. 1 1. Tex. Dep't of Pub. Safety v. Caruana, 2010 WL 522783, (Tex. App.--Austin 2010) pet. granted, 54 Tex. Sup. Ct. J. 538 (February 8, 2011) [10-0321]. 1 B. Judicial Review. 1 1. City of Dallas v. Stewart, S.W.3d, 54 Tex. Sup. Ct. J. 1348 (Tex. July 1, 2011) [09-0257]. 1 2. Fin. Comm'n of Tex. v. Norwood, 303 S.W.3d 404 (Tex. App.--Austin 2010), pet. granted, 54 Tex. Sup. Ct. J. 561 (February 25, 2011) [10-0121]. 2 3. R.R. Comm'n of Tex. v. Tex. Citizens for a Safe Future & Clean Water, 336 S.W.3d 619 (Tex. March 11, 2011) [08-0497]. 2 C....

"...However, it remanded the case back to the court of appeals to (1) consider the royalty owners' claims of breach of regulatory duty, fraud, negligent misrepresentation and negligence, as the trial court granted Exxon a directed verdict on those claims, the royalty owners conditionally challenged them at the court of appeals but did not brief them here, and because the royalty owners were successful at the court of appeals, that court did not consider the issues..."

"...He disagreed that the Legislature gave the Court jurisdiction to grant mandamus relief because the statute conferring jurisdiction on the Court makes no mention of "mandamus," the Texas Tax Code sets the rules for taxpayer suits and explicitly bars mandamus relief, and mandamus is inappropriate in a case like this because there is no ministerial duty to compel the comptroller to perform...."

"...At issue in this case was whether (1) the district court could impose a criminal contempt sanction against a person who lied under oath during a deposition, and (2) the Supreme Court should exercise jurisdiction to issue a writ of mandamus in a civil case where the Court was unable to exercise habeas jurisdiction by virtue jurisdictional limits, and the Court of Criminal Appeals refused to exercise its habeas jurisdiction, leaving the relator with no forum to challenge the finding of contempt...."

"...Finally, the Court reversed the court of appeals' judgment as to the Agreements, and held that (1) as retirees, the Firefighters had standing to enforce the Agreements, and (2) the Agreements constituted written contracts for which immunity was waived by section 271.152. Accordingly, the Court upheld the trial court's denial of the plea to the jurisdiction, and remanded to that court for further proceedings...."

§ 13:5. Housing

Government Discrimination: Equal Protection Law and Litigation • Gov. Discrim. § 13:5

Jones v. Alfred H. Mayer Co. extended the 1866 Civil Rights Act to all acts of racial discrimination in housing as well as in personal and other forms of property. The provision carries the constitutional tests for standing and proof of an intentional violation but allows unlimited damages and attorneys' fees. The principal fair housing law is Title VIII of the 1968 Civil Rights Act, known as the Fair Housing Act of 1968. Title VIII, as extended through the 1988 amendments, like Title VII, allows standing for anyone injured or who believes they will be injured, including neighborhood residents, testers, or units of local government, and a reduced burden of proving a violation. In Bostock v. Clayton County, the Court ruled that Title VII covers discrimination based on sexual orientation and

reaches bias against transsexuals. An extremely easy argument to make could be that the various regulations and statutes, such as Title VIII, touching on gender-based discrimination under...

"...This new framework gives borrowers the tools to effectively understand and compare loan offers, reduces the complexity of loan products, and enhances the ability of borrowers to receive loan offers from a variety of potential lenders); Concepcion, "The Untapped Potential of the Fair Housing Act in Addressing Aggressive Enforcement Of 'Walking While Black or Brown'" 17 U. Pa. J.L. & Soc. Change 383 (2014) (arguing that Title VIII's disparate impact theory can be used to challenge the overly aggressive provision of police services in minority neighborhoods where intentional discrimination cannot be demonstrated); Dane, Ramchandani & Bellows,..."

"...Schwemm & Allen, "For the Rest of Their Lives: Seniors and the Fair Housing Act," 90 Iowa L. Rev. 121 (2004); Schwemm & Taren, "Discretionary Pricing, Mortgage Discrimination, and the Fair Housing Act," 45 Harv. C.R.-C.L. L. Rev. 375 (2010) (arguing that litigation challenging industry-wide discretionary pricing policies of individual defendant-lenders resulted in unjustifiably higher rates and fees for minority borrowers has already gone a long way toward ending this particular practice, but that whether it can also secure relief for the tens of thousands of minority families placed in less-than-prime mortgages as a result of this practice remains to be seen); Seicshnaydre, "The Fair Housing Choice Myth," 33 Cardozo L. Rev. 967 (2012)..."

"...“Segregative-Effect Claims Under the Fair Housing Act,” 20 N.Y.U. J. Legis. & Pub. Pol’y 709 (2017) (arguing that segregative-effect theory holds great promise for advancing the Title VIII’s goal of reducing arbitrary barriers to minorities’ housing choices, but it needs more refinement before that promise can be fulfilled); Seicshnaydre “Disparate Impact and the Limits of Local Discretion After Inclusive Communities,” 24 Geo. Mason L. Rev. 663 (2017) (arguing..."

"...See generally: J. Kushner, Fair Housing (2d ed. 1995 & Supp. 2000); J. Relman, Housing Discrimination Practice Manual (1992); R. Schwemm, Housing Discrimination (1990); T. Watts, Fair Housing in The 1980's: A Bibliography (1988); Badger and Eligon, "Trump Administration Postpones an Obama Fair-Housing Rule," N.Y. Times Jan. 4, 2018) (undermining another Obama-era initiative, the Trump administration plans to delay enforcement of a federal housing rule that requires communities to address patterns of racial residential segregation; the Obama Administration enacted the landmark Affirmatively Furthering Fair Housing in 2015 to better enforce the Fair Housing..."

Current awareness

State attorneys general step up enforcement with regulatory shift of Trump administration

Practitioner Insights Commentaries • 2025 WL 2211277

Ashley Taylor, Clayton Friedman and Michael Yaghi of Troutman Pepper Locke LLP discuss stepped up enforcement efforts among state attorneys general in the face of the Trump administration's broad deregulatory agenda and as federal agencies appear to shift litigation priorities.

"...The Fair Housing Act has traditionally been enforced by the Department of Housing and Urban Development ("HUD")..."

"...In one instance, Maryland's Attorney General Anthony G. Brown settled (<https://bit.ly/4nZnI3V>) with three property management companies the state accused of violating the Fair Housing Act..."

"...As set forth in Executive Order 14192 (<https://bit.ly/450jJpK>), dated Jan. 31, 2025, President Trump stated "It is the policy of my Administration to significantly reduce the private expenditures required to comply with Federal regulations[.]..."

"...For instance, Texas issued a Civil Investigative Demand to General Mills concerning General Mills' labeling of ingredients...."

Coverage feud over landlord's alleged discriminatory behavior put on hold

WESTLAW Insurance Daily Briefing • 2020 WL 4033079

A San Diego federal judge has stayed an insurer's lawsuit alleging it owes no coverage to a landlord accused of violating the Fair Housing Act and engaging in other discriminatory conduct toward his female tenants.

"...Nelson is facing a separate action filed in August 2019 in the San Diego County Superior Court by another former tenant, Tracy Golden, who also alleges violations of the Fair Housing Act. *Golden v. Nelson*, No. 37-2019-00041050, complaint filed (Cal...."

"...One of Nelson's former tenants, Sylena Sanders, has since intervened in the government's action, asserting claims that he violated the Fair Housing Act, 42 U.S.C.A. § 3601...."

"...A San Diego federal judge has stayed an insurer's lawsuit alleging it owes no coverage to a landlord accused of violating the Fair Housing Act and engaging in other discriminatory conduct toward his female tenants...."

"...Nelson is a named defendant in a lawsuit the United States filed last year in San Diego federal court. *United States v. Nelson*, No. 19-cv-1087, complaint filed (S.D. Cal...."

Foreign ownership of agricultural land comes under new scrutiny

Practitioner Insights Commentaries • 2025 WL 3235785

Margaret Krawiec and Todd Kelly of Skadden, Arps, Slate, Meagher & Flom LLP examine the increased federal and state scrutiny of foreign ownership of agricultural land, including the Trump Administration's attention to the topic, bills in Congress and legal challenges to state laws.

"...The plaintiffs argued the law violated the Fourteenth Amendment's equal protection guarantee and the Fair Housing Act, and that it is preempted by federal law, namely FIRRMA...."

"...The result is that any individual or entity looking to acquire or sell agricultural land who may be subject to foreign ownership laws should be sure to carefully review, and stay up to date with, the relevant federal and state laws governing that transaction...."

"...However, in Texas a district court dismissed a challenge to a Texas law regulating foreign ownership, finding that the law did not apply to the plaintiffs (*Wang v. Paxton*)...."

"...She can be reached at Margaret.Krawiec@skadden.com. Todd Kelly is counsel in the firm's litigation group in Washington, D.C. He represents companies and individuals in complex civil litigation in federal and state courts...."